

26NNCV01579 26NNCV01579

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-16

Motion: DEFENDANT NATALIA BENSHAW'S DEMURRER AND MOTION TO STRIKE

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Case Number: 26NNCV01579 Hearing Date: July 16, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

CYNTHIA MILLER,

Plaintiff(s),

vs.

B&B

VENTURES LLC dba QUALITY KITCHENS FOR LESS, et al.,

Defendant(s).

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CASE NO.: 26NNCV01579

[TENTATIVE]

ORDER RE: DEFENDANT NATALIA BENSCHAW'S DEMURRER AND MOTION TO STRIKE

Dept.

3

8:30

a.m.

July 16,

2026

I. INTRODUCTION

On March 5,

2026, plaintiff Cynthia Miller ("Plaintiff") filed this action against

defendants B&B Ventures LLC dba Quality Kitchens for Less ("B&B"),

Robert Brard, and Natalia Benschaw ("Benschaw"). Plaintiff filed the operative

First Amended Complaint on June 9, 2026, which asserts causes of action for negligence and breach of contract against Benschaw.

On

June 22, 2026, Benschaw filed this demurrer to the FAC.

On

June 23, 2026, Benschaw filed this motion to strike practically all references

to “Natalie Benshaw” and “Benshaw” in the FAC.

II. LEGAL STANDARD

A.

Demurrer

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc. (1998) 68 Cal.App.4th 445, 459.) “We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]” (Mitchell v. California Department of Public Health (2016) 1 Cal.App.5th 1000, 1007; Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604 [“the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

B.

Motion
to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).)

III. DISCUSSION

A.

Demurrer
to First Cause of Action

Benshaw argues that Plaintiff's claim for negligence fails because there are no allegations that Benshaw personally owed Plaintiff a duty, participated in any allegedly tortious conduct, or breach an

independent duty owed to Plaintiff. (Demurrer, p. 4.) Benshaw argues that corporate officers and directors do not incur personal liability for torts of the corporation merely by reason of their official position and that Plaintiff fails to allege any facts showing that she specifically authorized, directed, or participated in the allegedly tortious conduct. (Demurrer, p. 5.) Benshaw argues that Plaintiff's "group pleading" fails to distinguish what, if anything, she is alleged to have done.

Benshaw also argues that Plaintiff's negligence claim fails due to the economic loss rule. Benshaw claims that any alleged negligence "appears to arise primarily from the same alleged failures to perform contractual obligations that underlie Plaintiff's breach of contract claim, including alleged deficiencies relating to the scope of work, permitting, completion, and project performance." (Demurrer, p. 6.) Plaintiff alleges that Defendants failed to perform construction work in a proper and workmanlike manner, failed to complete itemized contracted work, and failed to obtain required permits. Plaintiff does not allege that she sustained any damages other than economic damages arising from the purported breach of the construction agreement itself. (Aas v. Superior Ct. (2000) 24 Cal.4th 627, 639 ["A person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations."]))

In opposition, Plaintiff only argues that her negligence claim may be generally pled. While this is true, Plaintiff fails to address the economic loss rule in her opposition brief and explain why her tort claim encompasses more than simply economic damages. Since this is the first time Plaintiff's pleading is being considered on a demurrer, the Court sustains the demurrer to the First Cause of Action with 20 days' leave to amend.

C.
Demurrer
to Second Cause of Action

Benshaw argues that Plaintiff fails to allege sufficient facts to show that she can be held personally liable for breach of contract. Benshaw contends that Plaintiff is required to allege with specificity that Benshaw was a party to the contract and either personally guaranteed any contractual obligations or otherwise assumed personal liability. Benshaw argues any allegations of alter ego liability are insufficient and that

Plaintiff improperly pleads that “Defendants” acted collectively without identifying any specific actions taken by Benshaw.

At the pleading stage, Plaintiff is only required to plead ultimate facts, not evidentiary ones. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236-237.) Here, Plaintiff sufficiently alleges alter ego liability by alleging a unity of interest in ownership such that B&B was a mere shell and conduit for Benshaw to conduct business, the commingling of funds, that Benshaw controls and manages B&B to where their money, credit, and obligations are commingled, and that recognizing the separate existence of B&B would promote injustice. (FAC, ¶¶ 4-7.) Therefore, the demurrer to the Second Cause of Action is OVERRULED.

D. Motion to Strike

A motion to strike is intended to attack a part of the pleading smaller than a whole cause of action. (PH II, Inc. v. Superior Court (33 Cal.App.4th 1380, 1682-1683.) Here, Benshaw inappropriately attempts to use a motion to strike to repeat the arguments made in her demurrer. Benshaw’s motion is therefore DENIED because the motion to strike any allegations relating to the negligence cause of action is moot and the motion to strike any allegations relating to the breach of contract claim, alter ego liability, or general references to Benshaw in the FAC is groundless.

IV. CONCLUSION

The demurrer is SUSTAINED as to the First Cause of Action for negligence with 20 days’ leave to amend. The demurrer is OVERRULED as to the Second Cause of Action for breach of contract.

The motion to strike is DENIED.

Benshaw to give notice.

Dated
this 16th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.